

ECAPFX Proprietary Firm Terms and Conditions

Effective Date: 2 June 2025

Website: www.ecapfx.com

Jurisdiction: United Kingdom

1 About ECAPFX

ECAPFX Proprietary Firm (ECAPFX, we, us, or our) is a financial technology and proprietary trading company offering evaluation challenges for aspiring traders. Upon successful completion, traders may be offered a funded account under a profit-sharing model. We are not a broker and do not provide investment advice. All trading activities are simulated or executed through third-party brokerage accounts with demo or real capital.

2 Eligibility

To use our services, you must:

- Be 18 years or older
- Have the legal capacity to enter into a contract
- Not be prohibited under any applicable law from participating in financial activities
- Not be located in any restricted or sanctioned country (per FCA and UK law)

By registering, you confirm all information provided is truthful and accurate.

3 Services Offered

ECAPFX offers:

- Trading challenges across forex, commodities, and futures markets
- Funded account opportunities subject to challenge success and compliance
- Profit-sharing schemes (details available in individual programme pages)
- Educational and performance analytics tools

All services are subject to change without prior notice. Detailed rules are outlined in each challenges FAQ or programme guide.

4 Funded Accounts and Payouts

Successful completion of our multi-phase evaluation may qualify you for a simulated or real capital trading account. Terms include:

- Profit split ratios (e.g., 80/20) are outlined before challenge entry
- Payouts are subject to identity verification, AML checks, KYC, and account health

- Violations of trading rules (e.g., daily drawdown breach) may void eligibility please confirm with rules before purchasing a challenge
- We reserve the right to revoke funding if we suspect fraud, manipulation, or breach of rules
- Payouts are typically processed within 510 business days after approval; however, processing may be delayed due to compliance or verification procedures

5 Fees and Payments

Participation in trading challenges requires payment of a one-time, non-refundable fee. All fees:

- Are clearly listed prior to purchase
- Include applicable UK VAT where required
- May be paid via Stripe, PayPal, or other approved gateways

Refunds will only be issued for verifiable technical faults or service failure on our part. Refund requests must be submitted in writing within 7 days of the issue. Refunds are granted at our sole discretion.

6 User Conduct

You agree not to:

- Use bots, scripts, or any form of automation to trade
- Misuse platform access or breach challenge rules
- Attempt to reverse-engineer or interfere with the platforms functionality
- Impersonate others or submit false documents
- Use our services for unlawful, deceptive, or malicious purposes

Violation of these terms may result in immediate suspension or termination of your account, forfeiture of any payouts, and potential legal action. ECAPFX reserves the right to enforce any trading rule deemed necessary to protect the company.

7 Intellectual Property

All website content, including but not limited to branding, logos, videos, documents, software, and layout, is the intellectual property of ECAPFX or our licensors. You may not copy, reproduce, or use it for commercial purposes without written permission.

8 Limitation of Liability

To the maximum extent permitted by law, ECAPFX will not be liable for:

- Any loss of profits, business opportunities, or goodwill
- Errors resulting from third-party platforms (e.g., brokers or data feeds)
- Indirect, incidental, consequential, or punitive damages
- Delays or failures due to force majeure events (e.g., server outages, war, regulation)

Our total liability under these Terms shall not exceed the amount paid by you for the challenge in question.

9 Privacy and Data Protection

We are committed to protecting your personal data under UK GDPR and the Data Protection Act 2018. Please refer to our Privacy Policy and Cookie Policy for full details on how we handle your data.

10 Complaints and Dispute Resolution

If you are dissatisfied with our services, please refer to our Complaints Policy to raise your concern. If your complaint is unresolved after 8 weeks and you are an eligible complainant, you may refer the case to the UK Financial Ombudsman Service.

11 Termination

We may terminate your access to our platform or funded accounts at any time for cause, including:

- Breach of these Terms
- Violation of trading rules
- Evidence of fraudulent behaviour
- Regulatory concerns

You may cancel your account at any time by emailing support@ecapfx.com. Refunds are not issued for voluntary cancellations.

12 Governing Law

These Terms are governed by and construed in accordance with the laws of England and Wales. Any disputes arising from these Terms shall be subject to the exclusive jurisdiction of the courts of England and Wales.

13 Changes to These Terms

We reserve the right to modify these Terms at any time. Updated Terms will be posted on our website and take effect immediately. You are responsible for reviewing the Terms periodically.

14 Know Your Customer (KYC) and Restricted Jurisdictions

14.1 KYC Requirements

To comply with international regulations and applicable laws, all users must complete identity verification to participate in evaluation programmes or receive payouts. You are required to submit valid government-issued photo identification (e.g., passport or national ID). We use secure verification solutions from Kenmore Design to validate KYC documents. Payouts will only be processed upon successful identity verification.

14.2 Prohibited Jurisdictions

Use of ECAPFX services is strictly prohibited from the following jurisdictions, regardless of attempts to bypass restrictions through VPNs or other methods:

- Afghanistan, Belarus, Canada, Cuba, Iran, Myanmar (Burma), North Korea (DPRK), Russia, Syria, United States of America (USA), Crimea, Donetsk, and Lugansk regions of Ukraine

If access from these jurisdictions is detected, ECAPFX reserves the right to terminate your account and withhold any pending payouts.

15 Anti-Money Laundering (AML) Policy

15.1 Introduction

ECAPFX is an educational trading evaluation platform providing traders access to simulated trading accounts for skill development and assessment in a risk-free environment.

15.2 Scope

This AML Policy applies to all ECAPFX employees, contractors, and associated personnel and outlines the companys approach to AML and Counter-Terrorist Financing (CTF).

15.3 Business Model and Nature of Services

ECAPFX does not accept, hold, or manage client funds. ECAPFX does not provide financial advice or manage real capital. All trading occurs in simulated environments using demo accounts only. ECAPFX operates strictly for educational and evaluation purposes.

15.4 AML Regulatory Status

ECAPFX is not subject to the regulatory obligations imposed on entities handling real client funds, including Customer Due Diligence (CDD), transaction monitoring, or reporting suspicious activity.

15.5 Commitment to Compliance

While not obligated to implement formal AML controls, ECAPFX commits to transparency, legal compliance, and monitoring regulatory developments. Should our business model change to handle real client funds, we will implement full AML/CTF compliance.

15.6 Future AML Policy Implementation

If business operations evolve, ECAPFX will develop a comprehensive AML/CTF program including:

- Customer Due Diligence (CDD)
- Appointment of a Money Laundering Reporting Officer (MLRO)
- AML training for staff

15.7 Policy Development and Support

This AML Policy has been developed in collaboration with the provider of ECAPFXs CRM platform to align with industry best practices.

15.8 Conclusion

ECAPFX remains an educational simulated trading platform and is prepared to implement necessary AML controls if regulatory circumstances change.

16 Contact Information

If you have any questions about these Terms, please contact us:

ECAPFX Proprietary Firm

Email: support@ecapfx.com

Website: www.ecapfx.com